



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Seth Lloyd
Subject: UDC-23-00079 | Lot 3, Block 1, North Range Business Park, 13th Filing
Date: April 24, 2023

Background:

The item for consideration is an *Outside User Agreement*. This is approved by Resolution.

The proposed Governing Body review schedule is as follows:

- Introduction 4/24/2023
- Public Services Committee 5/2/2023
- Consideration 5/8/2023

Attachments:

1. Ordinance
2. Staff Report

RESOLUTION NO. _____

ENTITLED: "A RESOLUTION APPROVING WATER AND/OR SANITARY SEWER SERVICE, BY OUTSIDE USER AGREEMENT, FOR ADVANCED COMMUNICATIONS TECHNOLOGY INC, FOR THE PROPERTY AT LOT 3, BLOCK 1, NORTH RANGE BUSINESS PARK, 13TH FILING, LARAMIE COUNTY, WYOMING (LOCATED SOUTHEAST OF THE INTERSECTION OF HAPPY JACK ROAD AND BRUNS WAY)."

WHEREAS, Advanced Communications Technology Inc is the owner of the property in Laramie County, Wyoming, more specifically described as Lot 3, Block 1, North Range Business Park, 13th Filing, Laramie County, Wyoming;

WHEREAS, Advanced Communications Technology Inc ("the Applicant") submitted an application to the City of Cheyenne and the Board of Public Utilities ("BOPU") for water and/or sanitary sewer services outside of the corporate limits of the City of Cheyenne for the above-referenced properties;

WHEREAS, pursuant to Resolution No. 3577, BOPU was instructed to present to the Governing Body for its review any application for the provision of water and/or sanitary sewer services to any individual or entity outside the corporate limits of the City of Cheyenne;

WHEREAS, BOPU has reviewed the application submitted by the Applicant, and BOPU and the Applicant will approve and execute applicable Outside User Agreement(s) upon approval by the Governing Body pursuant to Resolution No. 3577; and

WHEREAS, the Governing Body has reviewed the applications for water and/or sanitary sewer services submitted by the Applicant and has determined that approval is in the best interest of the City of Cheyenne.

NOW, THEREFORE BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, THAT the application submitted by the Applicant to BOPU for water and/or sanitary sewer services outside of the corporate limits of the City of Cheyenne for the property described as Lot 3, Block 1, North Range Business Park, 13th Filing, Laramie County, Wyoming, is hereby approved.

BE IT FURTHER RESOLVED, that BOPU and the Applicant are authorized to approve and execute Outside User Agreement(s).

PRESENTED, READ AND ADOPTED this _____ day of _____,
2023.

Patrick Collins, Mayor

(SEAL)

ATTEST:

Kristina F. Jones, City Clerk



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CITY OF CHEYENNE GOVERNING BODY

APRIL 24, 2023

STAFF REPORT

FILE: UDC-23-00079: Advanced Communications Technology Inc – Outside User Agreement

REQUEST: An outside user agreement for the provision of water and sewer to a property outside City limits for 650 gallons per month.

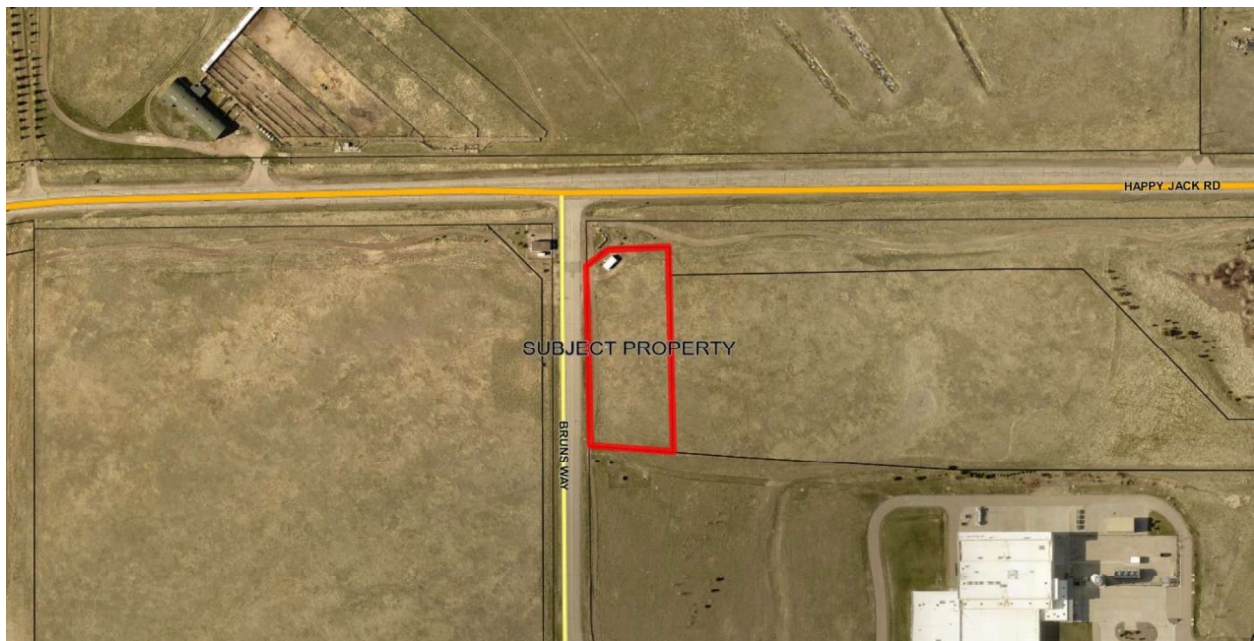
LOCATION: Southeast of the intersection of Happy Jack Road and Bruns Way

APPLICANT: Advanced Communications Technology Inc

AGENT: AVI - Brad Emmons

OWNERS: Advanced Communications Technology Inc

PREPARED BY: Seth Lloyd, Senior Planner



APPLICABLE CITY CODE SECTION(S) AND PLANS:

- PlanCheyenne
- Resolution 3577

BACKGROUND:

The applicant is requesting connection to BOPU water and sanitary sewer services for property outside City limits at an estimated amount of 650 gallons per month. This property is in the North Range Business Park, which already has BOPU water and sanitary sewer infrastructure and multiple pre-existing outside user agreements.

SURROUNDING LAND USE AND ZONING:

	Future Land Use Designation	Zoning	Land Use
Subject Site	Mixed-use Employment	County North Range Business Park PUD	Vacant
North	Urban Transition Residential	County A-2 Agricultural	Agriculture
South	Mixed-use Employment	County North Range Business Park PUD	Employment Campus
East	Mixed-use Employment	County North Range Business Park PUD	Vacant
West	Mixed-use Employment	County North Range Business Park PUD	Vacant

The property is currently zoned in the North Range Business Park PUD in the County.

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

The request for an outside user agreement has no formal review criteria; however, the following elements should be considered when reviewing outside user agreements:

- BOPU capacity
- Needed infrastructure improvements
- Population served
- Considerations on the effect on future annexation(s)
- Fiscal cost/benefit to the City and the BOPU
- Conformance with the Comprehensive Plan

The requested outside user agreement has minimal impact on BOPU's system capacity. The BOPU already has infrastructure adjacent to this site. The proposed use of the property is non-residential, and the request is largely for personal employee needs. The area has many outside user agreements already and the size, shape, and use of this parcel would not prevent or hinder future annexations of either this parcel or surrounding land.

Sales tax distribution is based on residents, so this non-residential development would likely only help City revenues in that regard. Property tax would increase, but the City would not have any income from the property tax in the area. The BOPU may charge a higher rate for outside users and the BOPU

infrastructure is already in place – so this agreement would likely be a net benefit to BOPU. City police, fire, and sanitation services would have to be extended well outside their current service boundaries to service this parcel, so if this parcel were to come into City limits by itself, it would likely result in a net fiscal loss; however, if the entire business park were to be annexed at once, the revenue increase would likely offset the fiscal impact.

The Comprehensive Plan designates this area as Mixed-use Employment – and the proposed use in this location is consistent with that anticipated development pattern.

CONFORMANCE WITH APPLICABLE PLANS:

The project is located in an area covered by the following plans:

- Plan Cheyenne

Conformance with PlanCheyenne is discussed above.

STAFF REVIEW:

Through the review process, the following comments were received:

- If the building has floor drains then the owner will need to install a sand interceptor.
- If facility provides food for employees, contact Environmental Health (307) 633-4090.

CONCLUSION:

Staff is satisfied that the application is acceptable based on the considerations specific to this request and therefore recommends approval of the outside user agreement.

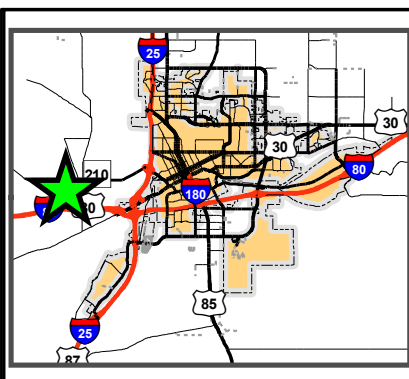
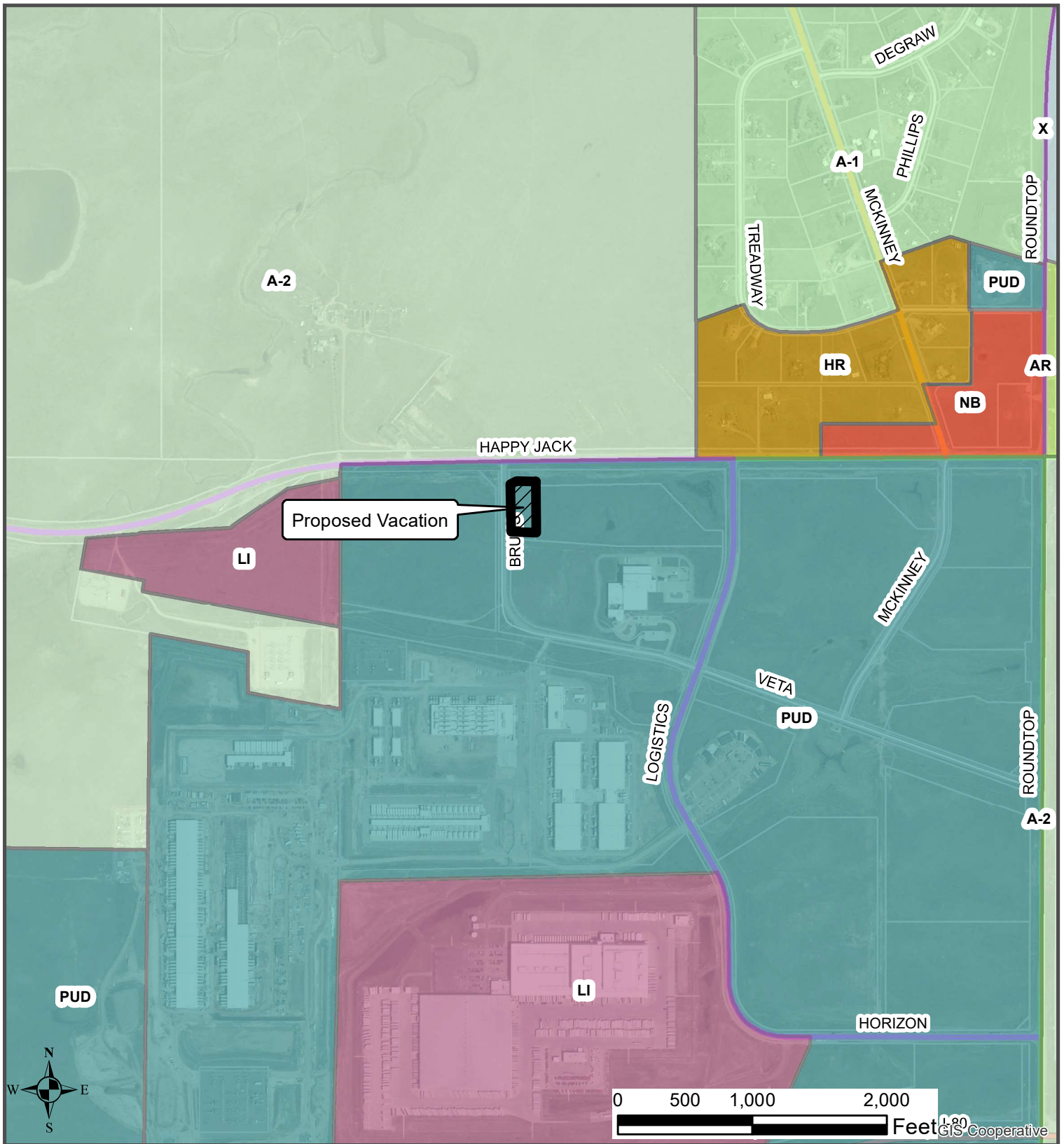
The proposed outside user agreement is far outside current city limits, has ready access to BOPU infrastructure, will not adversely affect BOPU's capacity, and would not adversely affect the City's ability to annex the area in the future.

STAFF RECOMMENDATION:

Staff recommends approval of the proposed outside user agreement.

ATTACHMENTS:

1. Current Zoning Map
2. Future Land Use Map
3. Application
4. Applicant-submitted proposed site plan

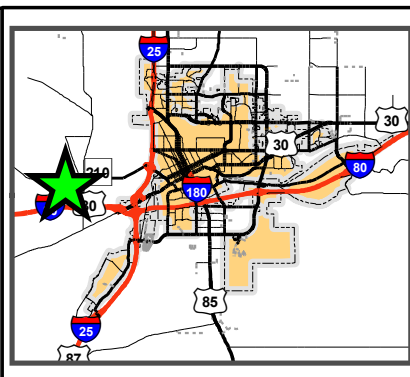
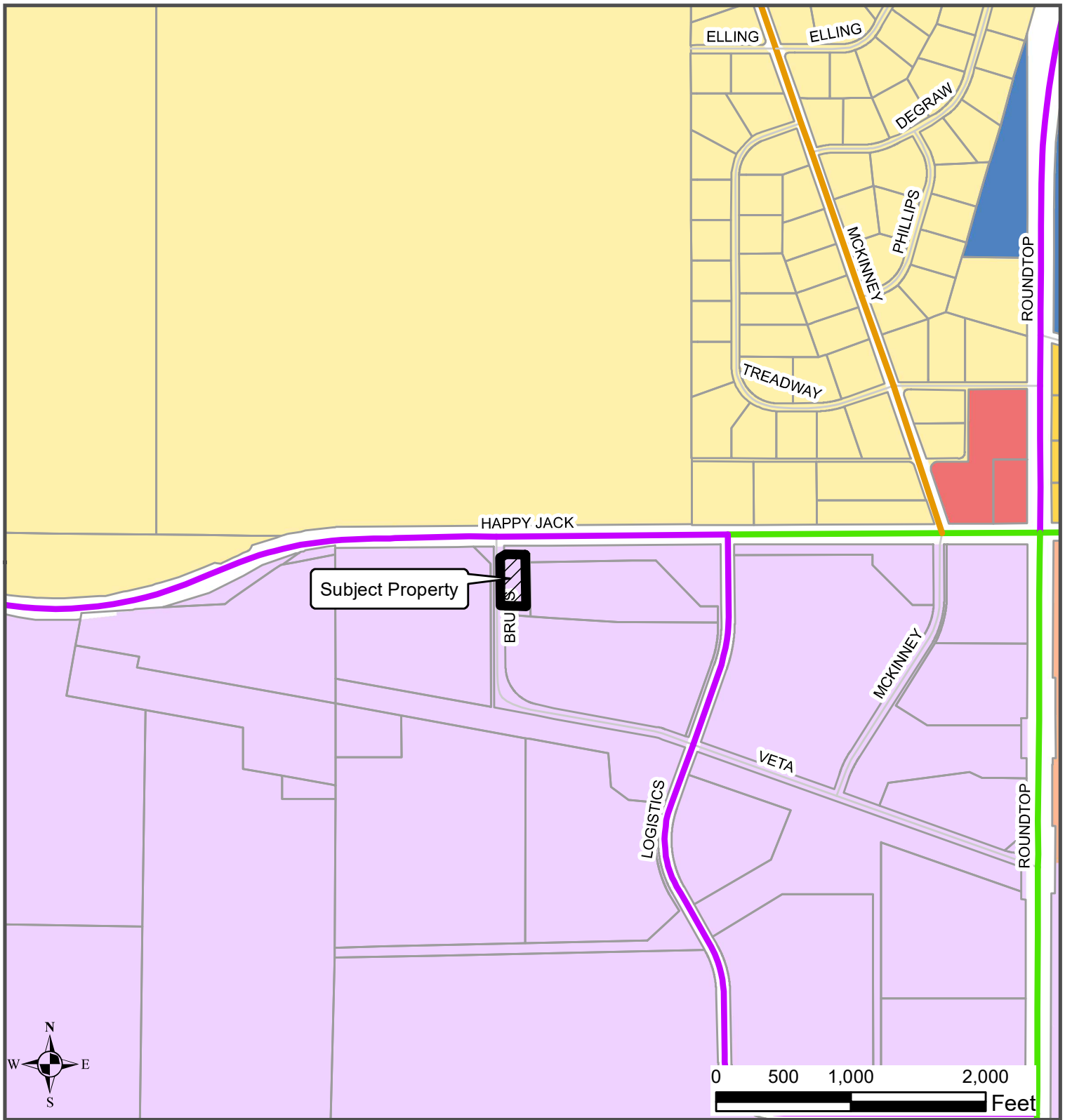


Attachment 1: Zoning Map UDC-23-00079

This map/data is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data, makes no warranties as to the validity, and assumes no liability associated with the use or misuse of this information.

Legend

	Nov19_CityLimits		A-1 / Agricultural and Rural Residential
	Interstate		A-2 / Agricultural
	Principal Arterial		AG / City Agricultural
	Minor Arterial		MUR / Mixed Use Residential Emphasis
	Major Collector		CBD / Central Business District
	Minor Collector		CB / Community Business
	Local		NB / Neighborhood Business
	Private		MU / Mixed Use - County
	Platted not built		MUB / Mixed Use Business Emphasis
	HR / High Density Residential		MUE / Mixed Use Employment Emphasis
	MR / Medium Density Residential		HI / Heavy Industrial
	LR / Low Density Residential		LI / Light Industrial
	NR-2 / Neighborhood Residential - Med. Density		P / Public
	NR-3 / Neighborhood Residential - High Density		AD / Airport District
	AR / Agricultural Residential		PUD / Planned Unit Development
			X / Exempt



Attachment 2: Land Use Map UDC-23-00079

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Legend

Nov19_CityLimits	Agricultural/Rural	Industrial
Interstate	Rural Residential	Central Business District
Principal Arterial	Urban Transition Residential	Community Business
Minor Arterial	Urban Residential	Public and Quasi-Public
Major Collector	Mixed-Use Residential	Military/Federal
Minor Collector	Mixed-Use Commercial	Open Space and Parks
Local	Mixed-Use Employment	
Private		
Platted not built		
Ownership		

Planning and Development: Outside User's Agreement

Submission date: **9 March 2023, 8:13AM**
Receipt number: **4**
Related form version: **4**

General Information

Applicant Name: **Advanced Communications Technology Inc**

Applicant Address: **PO Box 7039**

Applicant City: **Sheridan**

Applicant State: **WY**

Applicant Zip Code: **82801**

Applicant Phone: **3076300910**

Applicant Email: **mike.steinmetz@range.net**

Representative Name: **AVI - Brad Emmons**

Representative Address: **1103 Old Town Lane #101**

Representative City: **Cheyenne**

Representative State: **WY**

Representative Zip Code: **82009**

Representative Phone: **3076376017**

Representative Email: **emmons@avipc.com**

Owner Name: **Advanced Communications Technology Inc**

Owner Address: **PO Box 7039**

Owner City: **Sheridan**

Owner State:	WY
Owner Zip Code:	82801
Owner Phone:	3076300910
Owner Email:	mike.steinmetz@range.net
Who is the primary contact regarding this application?	Representative
Letter of Authorization	act loa_001.pdf
Project Location (Street Address or General Location):	SE Corner of Happy Jack Road and Bruns Way
Assessor's Parcel ID number(s)	R0067431
Total Project Area	Enter total acreage/square feet

Application-Specific Questions

Proposed Use	Office/Warehouse
Written Statement	Development of a Fiber hut and office/warehouse.
Estimated water usage.	4 parking spaces - 650 gallons per month
Acknowledgment	I understand a \$600 City application fee applies to this application (in addition to any required Board of Public Utilities (BOPU) fees) and the City Planning and Development Department will require payment prior to signing a BOPU Clearance Form. Recommended conditions of approval will be forwarded to the Governing Body at the time of consideration of the Outside User's Agreement.
Plot Plan / Site Plan	4701 SITE PLAN (2023-02-17).pdf

Signature / Certification

Applicant Signature

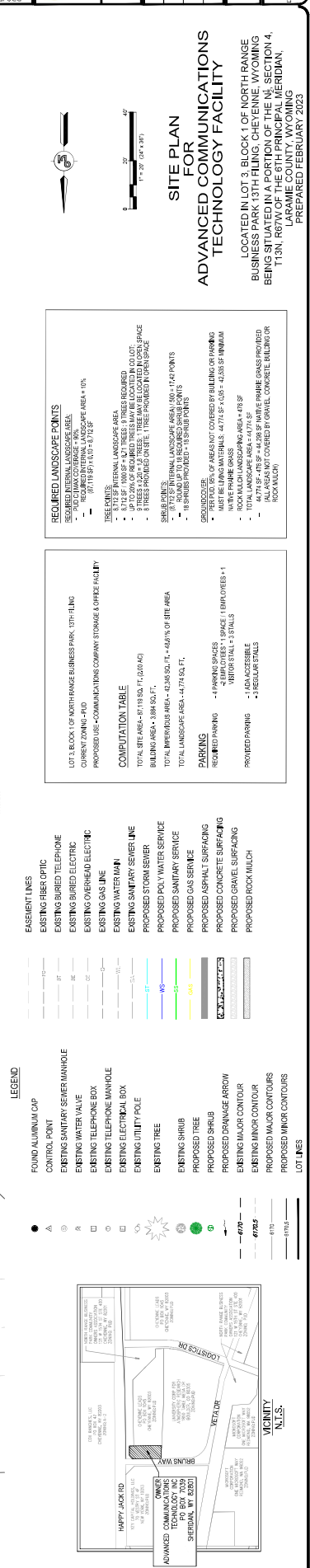
Name of signatory: Brad Emmons



[Uploaded signature image: brad emmons.jpg](#)

Please enter an email address for an email receipt.

emmons@avipc.com



LOCATED IN LOT 3, BLOCK 1 OF NORTH RANGE
BUSINESS PARK 13TH FILING, CHEYENNE, WYOMING
BEING SITUATED IN A PORTION OF THE $\frac{1}{4}$ SECTION 4,
T13N, R67W OF THE 6TH PRINCIPAL MERIDIAN,
LARAMIE COUNTY, WYOMING
PREPARED FEBRUARY 2023

LOT 3, BLOCK D OF NORTHFACE BUSINESS PARK, LITHIUM
CURRENT ZONING = P-10
PROPOSED USE = COMMUNICATIONS COMPANY STORAGE & OFFICE FACILITY

COMPUTATION TABLE

TOTAL SITE AREA - 47.118 SQ. FT. (2.02 AC)	
BUILDING AREA = 3,864 SQ. FT.	
TOTAL IMPERVIOUS AREA = 42,356 SQ. FT. - 46.6% OF SITE AREA	
TOTAL LANDSCAPE AREA = 4,711 SQ. FT.	

PARKING

REQUIRED PARKING	• 6 PARKING SPACES • 2 EMERGENCY / SERVICE / TRUCK OFFICES + 1 VEHICLE STALLS
PROPOSED PARKING	• 14 ACCESSIBLE • 8 REGULAR STALLS

●	FOUND ALUMINUM CAP	—	EASING LINES
△	CONTROL POINT	—	EXISTING FIBER OPTIC
□	EXISTING SANITARY SEWER MANHOLE	—	EXISTING BURIED TELEPHONE
△	EXISTING WATER VALVE	—	EXISTING BURIED ELECTRIC
□	EXISTING TELEPHONE BOX	—	EXISTING OVERHEAD ELECTRIC
□	EXISTING TELEPHONE MANHOLE	—	EXISTING GAS LINE
□	EXISTING ELECTRICAL BOX	—	EXISTING WATER MAIN
△	EXISTING UTILITY POLE	—	EXISTING SANITARY SEWER LINE
●	EXISTING TREE	—	PROPOSED STORM SEWER
●	EXISTING SHRUB	—	PROPOSED POLY WATER SERVICE
●	PROPOSED TREES	—	PROPOSED SANITARY SERVICE
●	PROPOSED SHRUB	—	PROPOSED GAS SERVICE
—	PROPOSED DRAINAGE ARROW	—	PROPOSED ASPHALT SURFACING
—	EXISTING MAJOR CONTOUR	—	PROPOSED CONCRETE SURFACING
—	EXISTING MINOR CONTOUR	—	PROPOSED GRAVEL SURFACING
—	PROPOSED MAJOR CONTOURS	—	PROPOSED ROCK MULCH
—	PROPOSED MINOR CONTOURS	—	
—	LOT LINES	—	

